

CHAPTER XIV.

Proceedings to hear Cause "*Pro Confesso*."

Pro confesso. Another mode of proceeding, when the defendant elects not to answer, is to procure the cause to be set down to be heard as if the defendant had confessed the truth of the matter in the Bill stated. This is done under the provisions of the following Orders:—

1850.
XXXIII. After time for answering, Plaintiff may give notice of motion to take bill *pro confesso*.
At the expiration of the time allowed to any defendant within the jurisdiction of the Court for answering the bill or at any time within three weeks afterwards, the plaintiff may cause such defendant to be served, personally, or by his solicitor (if he have one), with a notice of motion, to be made on some day not less than three weeks after the day of such service, that the bill may be taken pro confesso against such defendant; and thereupon, unless such defendant shall in the mean time have put in his answer to the bill, or obtained further time to answer the same, the Court, if it shall think fit, may order the bill to be taken pro confesso against such defendant, either immediately, or at such time and upon such terms and subject to such conditions as under the circumstances of the case the Court shall think proper.

XXXIV. Where a defendant shall not put in his answer in due time, after appearance entered by or for him, and he shall have no solicitor, and such defendant has either been served with subpoena out of the jurisdiction, or the plaintiff has been unable with due diligence to serve him personally with such notice of motion as is provided by Order XXXIII., by reason of his being concealed, or for any other cause, the plaintiff may cause to be inserted in the *Canada Gazette* a notice, that on a day to be named

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